

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Justice Yahya Afridi, CJ
Justice Muhammad Ali Mazhar

C.P.L.A.No. 3153-L OF 2019

Against the Judgment dated 16.07.2019
passed by Punjab Service Tribunal, Lahore
in Appeal No.2097/2017.

Muhammad Javed Iqbal

...Petitioner

Versus

The Secretary School Education Department,
Government of the Punjab, Lahore and another ...Respondents

For the Petitioner: Mr. Dil Muhammad Khan Alizai
Syed Rifaqat Hussain Shah

For the Respondents: Mr. Khalid Masood Ghani, Asst.
Advocate General, Punjab.

Date of Hearing: 02.12.2025

Judgment

Muhammad Ali Mazhar-J:- This Civil Petition for leave to appeal is directed against the impugned Judgment dated 16.07.2019 passed by the learned Punjab Service Tribunal, Lahore, in Service Appeal No.2097/2017 whereby the Service Appeal filed by the petitioner was dismissed.

2. In fact, the petitioner was issued a show cause notice dated 12.4.2016 on the following allegations:

“i. He violated the proper channel/hierarchy of administration, while submitting the note to the DCO, directly, ignoring his immediate officer, i.e EDO (Edu),

Rajanpur and hiding the fact of imposition of ban by the Govt. that too without any plausible ground.

ii. He managed hundreds of transfers during ban with mala fide intention and without any convincing reason.

iii. He managed the transfer of I.T teacher (Single teacher), in violation of Govt. Policy, even to those schools where I.T Lab does not exist that too during ban on transfers.

iv. He managed the transfer of female teachers to male institution and the newly recruited educators prior to completion of their three years service that too during ban, imposed by the Govt.

v. He managed the transfer of Mrs. Maryam Arshad, SESE (Sci. Math) as SST during ban in violation of the rules/policy of the Govt."

Bearing in mind the inquiry report and the recommendations forwarded by the inquiry officer, the Secretary School Education (competent authority) awarded the major penalty of dismissal from service to the petitioner. Although he preferred a departmental appeal, it was not decided within the statutory period, therefore, the petitioner as a last resort filed a Service Appeal which was dismissed by means of the impugned judgment.

3. The learned counsel for the petitioner argued that all the transfer orders were made against the vacant posts in view of the information conveyed by the Assistant Officer (Education), Deputy District Officer (Education), and Executive District Officer (Education), Rajanpur. After discussion, the transfers were approved by the District Coordination Officer, Rajanpur. He further argued that no ample opportunity of defense was afforded to the petitioner during the course of inquiry. However, as a fall back argument, he further contended that taking into consideration the past clean service record of 31 years at the credit of the petitioner, the penalty of dismissal from service may be converted into compulsory retirement.

4. The learned Asst. Advocate General, Punjab, argued that it is clearly reflected from the inquiry report that the petitioner was afforded reasonable opportunity to disprove the allegations leveled against him but he could not succeed. He further averred that in all transfer letters prepared and issued by the petitioner as Assistant Director (Admin), he wrongly mentioned that the proposals of transfers were discussed with the EDO Education and concerned DDO. Rather, it is a ground reality that no such proposal was ever discussed either them. It was further contended that since all transfer orders were issued illegally during the imposition of ban by the government, therefore, the major penalty of dismissal from service was rightly awarded to the petitioner.

5. Heard the arguments. The record reflects that in order to thresh out the allegations, a regular inquiry was conducted and the petitioner was afforded reasonable opportunity to defend the charges of misconduct. According to the defence offered by the petitioner/accused in the departmental inquiry, all transfer orders were recognized, signed and seen by the DCO, EDO, DMO and District Account Office respectively and no one ever raised any objection. He further avowed that every transfer order was allotted a dispatch number in the dispatch register kept in the EDO (Edu) Office through a dispatcher deputed by EDO (Edu) and everything was clearly brought in the notice of EDO (Edu) without any concealment. According to his statement, the ban on the transfers imposed by Government was not in his knowledge. So far as the transfer of IT Teachers is concerned, he stated that IT teachers were appointed/posted since 2009 and were receiving salaries without performing their duties due to non-availability of IT Labs, hence their transfer orders were issued with the approval of DCO. So far as the allegation of transfer of Mrs. Maryam Arshad SSE (Sci-Math) as SESE is concerned, the petitioner/accused responded in the inquiry that the transfer was also made by the orders of DCO. However, the said lady was actually performing her duties as SSE (Sci/Math), BS-16, but due to a typographical mistake, her designation was written as SESE that was later rectified.

6. On the contrary, EDO (Education), Rajanpur, also appeared in the inquiry proceedings and he vehemently stated that neither any transfer policy was framed, nor was he present or informed of such activity. He further asserted that all the transfer orders were issued in violation of Govt. policy and the petitioner /accused acted beyond his competency and committed misconduct. EDO further avowed in his statement before the inquiry officer that he never agreed to illegal transfers which were made by the petitioner on three different dates and during inquiry, the petitioner also failed to produce any minutes of meeting or any evidence to prove that the transfers were approved by the competent authority.

7. We have also examined the inquiry report which demonstrates that the Inquiry Officer discussed all the charges in the inquiry report in detail and also rendered separate findings on each charge and found the petitioner guilty. Thereafter, he recommended the major penalty of dismissal from service under Section 4(1) (b) (iv) of Punjab Employees Efficiency, Discipline Act, 2006. It is gleaned from the record that the learned Tribunal, while dismissing the service appeal, observed that despite affording ample opportunity during inquiry, the petitioner failed to dislodge or disprove the allegations of inefficiency and misconduct.

8. In the context of the present controversy, we also take a look at the relevant provisions of the Punjab Employees Efficiency, Discipline and Accountability Act 2006 (**PEEDA Act**) wherein Section 10 deals with the procedure to be followed by the inquiry officer or the inquiry committee while inquiring into the charges of misconduct, where they may also examine oral or documentary evidence in support of the charge or in defence of the accused and where any witness is produced by one party, the other party shall be entitled to cross examine such witness. After culmination of the inquiry, the inquiry officer or the inquiry committee, as the case may be, is bound to submit an inquiry report to the competent authority with clear findings as to whether the charge or charges have been proved or not with specific recommendations regarding

the exoneration or imposition of penalty. It is further provided in the same Section that the recommendations of the inquiry officer or the inquiry committee, as the case may be, shall not be binding on the competent authority.

9. Moreover, Section 13 of PEEDA Act amplifies that on receipt of the report from the inquiry officer or inquiry committee, as the case may be, the competent authority shall examine the report and the relevant case material and determine whether the inquiry has been conducted in accordance with the provisions of this Act and shall also determine whether the charge or charges have been proved against the accused or not. It is further provided that where the charge or charges have not been proved, the competent authority shall exonerate the accused by an order in writing and where the charge or charges have been proved against the accused, the competent authority shall issue a show cause notice to the accused and (a) inform him of the charges proved against him and the penalty or penalties proposed to be imposed upon him by the inquiry officer or inquiry committee; (b) give him reasonable opportunity of showing cause against the penalty or penalties proposed to be imposed upon him and to submit as to why one or more of the penalties as provided in Section 4 may not be imposed upon him and to submit additional defence in writing, if any, within seven days of the receipt of the notice, before itself or the hearing officer, as the case may be; (c) indicate the date of personal hearing or appoint a hearing officer to afford an opportunity of personal hearing on his behalf. After affording personal hearing to the accused or on receipt of the report of the hearing officer, the competent authority shall, keeping in view the findings and recommendations of the inquiry officer or inquiry committee, as the case may be, facts of the case and defence offered by the accused during personal hearing, by an order in writing (i) exonerate the accused; or (ii) impose any one or more of the penalties specified in Section 4. In case the competent authority is satisfied that the inquiry proceedings have not been conducted in accordance with the provisions of this Act or the facts and merits

of the case have been ignored or there are other sufficient grounds, it may, after recording reasons in writing, either remand the inquiry to the inquiry officer or the inquiry committee, as the case may be, with such directions as the competent authority may like to give, or may order a de novo inquiry.

10. In tandem, Section 14 is germane to “personal hearing” in which it is distinctly provided that after affording personal hearing to the accused, the authority or the hearing officer shall, in relation to the case and the contention of the accused during the hearing, record his remarks in writing and, in case of hearing officer, submit a report to the authority so appointed him which shall include (i) summary of the inquiry report where inquiry was conducted under section 10, or summary of the defence offered by the accused to the show cause notice under section 7, or grounds of appeal or review filed under section 16, as the case may be; (ii) summary of defence offered by the accused during the hearing, if any; and (iii) views of the departmental representative, if any.

11. The cumulative effect of the provisions of PEEDA Act cited in the foregoing paragraphs expounds and draws attention to a crucial aspect that though after completion of the inquiry, the inquiry officer is obligated to submit the inquiry report to the competent authority with recommendations regarding exoneration or imposition of penalty, the recommendations of the inquiry officer or the inquiry committee, as the case may be, has no binding effect on the competent authority. So what is deciphered here is that the recommendations may have persuasive effect but may not be binding on the competent authority which in its own judgment and prudence may award any penalty as it may deems fit and appropriate keeping in view the charges of misconduct. However, in our view, if the recommendations of the inquiry officer or inquiry committee are not accepted by the competent authority and/or the matter is remanded for de novo inquiry or the competent authority deviates from the recommendations, then in all conscience, there must be some logical and legitimate reasons to depart from the

recommendations of the inquiry officer or inquiry committee. No doubt in this case, while affording an opportunity of personal hearing, the hearing officer recommended the penalty of compulsory retirement but the crucial question is whether the proposal of the hearing officer was binding or whether it could supersede the recommendations of inquiry officer? Under Section 14 of PEEDA Act, the role of the hearing officer is delineated, who is required to afford personal hearing to the accused and submit a report. So for all intent, what he proposed could be considered advisory and not binding.

12. It is a well settled exposition of law that in case the misconduct is proved in the inquiry, then it is not only the prerogative rather it is always within the exclusive domain of the competent authority to decide the quantum of punishment which includes the consideration of proportionality in awarding the punishment vis-à-vis the gravity and severity of misconduct. In the case of Postmaster General Balochistan versus Amanat Ali and others (**2024 SCMR 1484 = 2024 PLC (C.S) 1051 = 2024 SCP 271**), it was held that the award of appropriate punishment under the law is primarily the function of the concerned administrative authority and the role of the Tribunal/Court is secondary. The Court ordinarily would not substitute its own finding with that of the said authority unless the latter's opinion is unreasonable or is based on irrelevant or extraneous considerations or is against the law declared. While in the case of Secretary to Government of the Punjab Law & Parliamentary Affairs Department, Lahore and another versus Ali Ahmad Khan (**2025 SCMR 489 = 2025 SCP 2**), it was held that in appropriate cases, the Tribunal may substitute or modify the quantum of punishment to ensure it is commensurate and rational, being mindful of the allegations of misconduct and the gravity of the charges. However, it must follow the limitations and restrictions of the law in its exercise of discretion, in a manner which may not offend the spirit of law. While taking into consideration the philosophy of punishment and concept of retribution, it should also

keep in mind that the purpose of deterrent punishment is not only to balance the gravity of the wrong done, but also to maintain discipline and decorum in the establishment, and at times, to serve as a preventive measure or example for others in the interest of societal reformation. [Ref: Postmaster General Sindh Province, Karachi versus Syed Farhan (**2022 SCMR 1154**) and Government of Khyber Pakhtunkhwa versus Nargis Jamal (**2022 SCMR 2114**)]

13. In the case of Ijaz Badshah versus Secretary, Establishment Division, Govt. of Pakistan (**(2023 SCMR 407= 2023 PLC (C.S) 694**), it was held by one of us that no doubt this Court may examine and judicially review the executive discretion on the ground of proportionality and reasonableness but at the same time, the gravity of the charges raised in the statement of allegations are also to be considered. The standard of unreasonableness *vis-à-vis* the exercise of powers under the doctrine of judicial review correlates to the judiciary's power to determine the constitutional legitimacy of laws and the lawfulness of decisions made by public bodies, which was dealt with and mulled over in the case of Associated Provincial Picture Houses Ltd. v. Wednesbury Corporation ((1948) 1 KB 223), which explicates that a reasoning or decision is unreasonable (or irrational) if it is so unreasonable that no reasonable person acting reasonably could have made it, whereas in the test of proportionality, the courts may quash the exercise of discretionary powers in which there is no reasonable relation between the objective which is sought to be achieved and the means used to that end, or where punishments imposed by administrative bodies or inferior courts are wholly out of proportion to the relevant misconduct. While exercising the role of judicial review in order to examine whether the punishment awarded by the competent authority may be converted into some lesser punishment or not, the set of circumstances of each and every case has to be considered minutely to determine whether the person deserves such treatment or not. In fact, it is the gravity of misconduct and charges which predominately guide the exercise of judicial review.

14. We have no hesitation in our mind to reiterate that undoubtedly, it is the sole prerogative of the employer to decide the quantum of punishment if the misconduct is proved after proper inquiry but each case of misconduct under the departmental hierarchy has its own peculiar set of circumstances, including the nature and seriousness of allegations of misconduct against the delinquent. By the looks of it, there was no allegation of corruption (accepting or obtaining or offering any gratification or valuable thing, directly or indirectly, other than legal remuneration, as a reward for doing or for bearing to do any official act; or dishonestly or fraudulently misappropriating, or indulging in embezzlement or misusing Government property or resources etc.) or any other allegation of protracted willful absence from duty or involvement in any criminal cases or indictment in any heinous crime, but he was found guilty of misconduct on account of inefficient discharge of his duties and conducted himself in a manner that was prejudicial to service discipline by making transfers without sanction.

15. By the same token, it is also a ground reality that cannot be overlooked or ignored that even though the petitioner issued various transfer orders on 05.03.2015, 09.03.2015 and 14.03.2015 (as attached with the paper book) without lawful authority as alleged in the charge sheet, it was also a ground reality that such transfers at a large scale was not a hidden secret, rather, whether a large strength of transferred employees had joined their new place of posting or not, but nothing was brought on record whether such transfer orders were acted upon or withdrawn. Rather, the show cause/statement of allegation was issued to the petitioner on 12.4.2016 i.e. almost after one year of alleged upheaval of transfers without disclosing any commonsensical justification as to why the departmental action was not triggered immediately when the alleged illegal transfers were made on broad spectrum but surprisingly, it took at least one year by the department to realize and initiate disciplinary proceedings against the petitioner alone without

accountability of any other person of the same department. Compliant with Sub-section (1) of Section 4 of the PEEDA Act, the competent authority may, by an order in writing, impose one or more of the minor or major penalties as provided under clause (a) and (b). The catalogue of major penalties in clause (b) rattles off (i) recovery from pay, pension or any other amount payable to the accused, the whole or a part of any pecuniary loss caused to the Government or the organization in which he was employed, and if the amount due from any such person cannot be wholly recovered from the pay, pension or any other amount payable to him, such amount shall be recovered under the law for the time being in force; (ii) reduction to a lower post and pay scale from the substantive or regular post for a specific period subject to a maximum of five years; (iii) forfeiture of past service for a specific period subject to a maximum of five years; (iv) compulsory retirement; (v) removal from service; and (vi) dismissal from service; and penalties after retirement as provided under clause (c). It is further provided under sub-section (2) that the dismissal from service under this Act shall disqualify the employee for future employment under the Government or under any organization to which the provisions of this Act apply with the rider under sub-section (3) that any penalty under this Act shall not absolve an employee or accused from liability to any punishment to which he may be liable for an offence, under any law, committed by him while in service.

16. The concept of proportionality in punishment is systematized and unwavering on the touchstone that the penalty imposed on a delinquent employee should be commensurate and complementary to the gravity of the act of misconduct. No doubt, the original power to award punishment rests with the departmental authority but the Service Tribunal and this Court while exercising its jurisdiction under Article 212 of the Constitution of Islamic Republic of Pakistan 1973, in order to do and ensure complete justice, may also consider the quantum of punishment on the benchmark of proportionality and reasonableness as against the gravity of charges of misconduct

and can also modify the quantum of punishment if it is found to be disproportionate or incommensurate or against the law. Though the competent authority awarded the punishment of dismissal from service, in our view, taking into consideration the long length of 31 years of service and except the act of inefficiency/misconduct in the present case, no material of any past inefficiency or misconduct was produced to prove blemished service record, therefore in all fairness, the major penalty of punishment from dismissal of service deserves to be converted into another major penalty of compulsory retirement.

17. As a result of the above discussion, this Civil Petition is converted into appeal and partly allowed. As a consequence, the major penalty of dismissal from service is modified to another major penalty of compulsory retirement.

Chief Justice

Judge

ISLAMABAD

02.12.2025

Khalid

Approved for reporting.